

*contingat ipsos in arrearagiis super compotum suum omnibus allocatis et allocandis, arrestentur corpora eorum, et per testimonium auditorum ejusdem compoti mittantur et liberentur proxime gaole domini Regis in partibus illis, etc.* In that case, although no time be limited when the accomptant shall be imprisoned, yet it ought to be done (c) presently, as it is held in 27 H. 6. 8 a. and the reason thereof is given in *Fogassa's case*, Plowd. Com. 17 b. that the generality of the time shall be restrained to the present time, for the benefit of him upon whom the pain shall be inflicted, and therewith agrees Plow. Com. 206 b. in *Stradling's* [120 a] case. And a justice (a) of peace, upon view of the force, ought to commit the offender presently. 5. Forasmuch as the censors had their authority by the letters patent and Act of Parliament, which are high matters of record, their proceedings ought not to be by parol, *et eo potius*, because they claim authority to fine and imprison, and therefore, if judgment be given against one in the Common Pleas in a writ of (b) recaption, he shall be fined and imprisoned, but if the writ be vicontiel in the county, there he shall not be fined or imprisoned, because a writ of the Court is not of record, F. N. B. in Recaption. So in F. N. B. 47 a. a plea of trespass *vi et armis* doth not lie in the County Court, Hundred Court, &c. for they cannot make a record of fine and imprisonment; and regularly they who cannot make (c) a record, cannot fine and imprison. And therewith agrees 27 H. 6. 8. Book of Entries, tit. Account, fol. —. The auditors make a record when they commit the defendant to prison; a justice of peace upon view of the force may commit, but he ought to make a record of it. 6. Forasmuch as the Act of 14 H. 8. has given power to imprison till he shall be delivered by the president and the censors, or their successors, reason requires that it should be taken strictly, for the liberty of the subject (as they pretend) is at their pleasure: and this is well proved by a judgment in Parliament in this very case; for when this Act of 14 H. 8. had given the censors power to imprison, yet it was taken so literally, that the gaoler was not bound to receive such as they should commit to him; and the reason thereof was, because they had authority to do it without any Court: and thereupon the statute of 1 Ma. (d) cap. 9. was made, that the gaoler should receive them upon a penalty, and yet none can commit any to prison, unless the gaoler receive him: but the first Act, for the cause aforesaid, was taken so literally, that no necessary incident was implied.

And where it was objected, that this very Act of 1 Mar. c. 9. has enlarged the power of the censors, and they urged it upon the words of the Act; it was clearly resolved, that the said Act of 1 Mar. did not enlarge the power of the censors to fine or imprison any person for any cause for which he ought not to be fined or imprisoned by the said Act of (e) 14 H. 8. For the words of the Act of Queen Mary are, "according to the tenor and meaning of the said Act:" also "shall send or commit any offender or offenders for his or their offence or disobedience, contrary to any article or clause contained in the said grant or Act, to any ward, gaol, &c." But in this case Bonham has not done any thing which appears within this record, contrary to any article or clause contained within the grant or Act of 14 H. 8. Also the gaoler who refuses shall forfeit the double value of [120 b] the fines and americiaments that any offender or disobedient shall be assessed to pay; which proves that none shall be received by any gaoler by force of the Act of 14 H. 8. but he who may be lawfully

(c) *Postea* 120 b. 2 Brownl. 266. 2 Inst. 380. 2 Bulstr. 139. Fitz. Bar. 44. Br. Account 6. Br. Det. 16. Br. Execution 135. Br. Faux Imprisonment 32. 1 Ld. Raym. 483.

(a) 2 Brownl. 266. 15 R. 2. c. 2. 8 H. 6. c. 9. 6 Mod. 125.

(b) *Antea* 60 b. 41 a. 8 Co. 41. 11 Co. 43 b. F. N. B. 73 d. Vin. Ab. Amerc. 1 a. pl. 23. 1 L. Raym. 468.

(c) *Antea* fo. 38 b. 41 a. 60 b. F. N. B. 73 d. 10 Co. 103 a. 1 Salk. 200. 8 T. R. 516.

(d) 2 Brownl. 257. 262. 265, 266. Rast. Phys. 7. Lit. Rep. 169. 172, 173. 212, 213. 248, 249. 350, 351. Cr. Jac. 121. Cr. Car. 257. 1 Jones 263. Car. 115. 4 Inst. 251.

(e) 14 & 15 H. 8. cap. 5. Roll. 598. 4 Inst. 251. Rast. Phys. 3. 2 Bulstr. 185. Lit. Rep. 168, 169. 172. 212. 215. 246, 247, 248, 249. 1 Jones 261. Cro. Jac. 121. 159, 160. Cro. Car. 256. Palm. 486. Cart. 115.